

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC v.
OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS CONTAINER
LINE LIMITED, OOCL (EUROPE) LIMITED, EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND
YANG MING MARINE TRANSPORT CORPORATION

**ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE)
LIMITED'S OPPOSITION TO NIELSEN & BAINBRIDGE, LLC'S MOTION FOR
LEAVE TO INITIATE DISCOVERY**

On August 15, 2025, Claimant Nielsen & Bainbridge, LLC ("NBG") filed a "Motion for Leave to Initiate Discovery or, in the Alternative, to Schedule a Status Conference" ("Motion") in the above-captioned action. It did so after the Office of the Secretary of the Federal Maritime Commission rejected its prior letter Request for Leave to Initiate Discovery ("Request").

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (collectively "OOCL") object to NBG's Motion as follows:

I. NBG's Motion Does Not Comply with the FMC Rules.

The FMC's Rules of Practice and Procedure ("FMC Rules") applicable to non-dispositive motions mandate that a movant's counsel confer with counsel for all other parties before filing such a motion. 46 C.F.R. 502.69(a); 502.71(a). At no point before its filing of either the Request or the Motion did counsel for NBG seek to confer with counsel for OOCL (or, apparently, other Respondents). NBG's Motion also does not state within the body of the motion what attempt was

made (none), or what discussion occurred (none), and whether the motion is opposed (it is). On this basis alone, the Motion should be denied.

II. The FMC Rules Do Not Authorize Pre-Answer Discovery.

There is nothing in the FMC Rules that would authorize the Presiding Officer to order discovery to begin before Answers are filed or Procedural Schedules proposed and adopted. Rather, the FMC Rules are very much to the contrary.

The FMC Rules contemplate, for example, that the very first discovery—initial disclosures—will take place within seven days *after* the filing of an Answer, that the parties will confer within 15 days *after* the filing of an Answer, and that the parties will propose a schedule under which discovery will end within 150 days *after* the filing of an Answer. 46 C.F.R. 502.141(b); 141(g); 141(h). Unlike the days of yore, when discovery requests had to be attached to complaints and answers, the current FMC Rules operate under the proposition that discovery ought not commence until an Answer is filed and the parties joined in dispute. NBG has not and cannot point to any basis by which the Presiding Officer should depart from the FMC Rules in this regard.

III. The Procedural Posture of the Case Does Not Warrant Commencement of Discovery at this Time.

OOCL's Motion to Sever dated January 23, 2025 is pending before the Presiding Officer, who issued an Order on June 18, 2025 ("June 18 Order"), deferring decision on the Motions to Sever filed by OOCL and Respondent Ocean Network Express Pte. Ltd. ("ONE")) until the parties submitted additional briefing, which was done on July 7, 2025.¹

¹ The June 18 Order also denied as premature OOCL's and ONE's Motions for a More Definite Statement.

While an ultimate decision on the Motion to Sever is still pending, the Commission's June 18, 2025 Order stated, in pertinent part:

I plan to sever the proceeding into separate cases which I will consider managing together if it is in the best interests of the parties and sound case management.

* * *

I find that there is no common transaction, occurrence or series of transactions or occurrences . . .

* * *

[The transactions] are fact-specific to each Respondent and its interactions with NBG.

* * *

Accordingly, I am inclined to sever into separate cases the claims against each Respondent.

June 18, 2025 Order at pp. 4-6 (emphasis added).

The June 18 Order therefore clearly telegraphed to the parties that the claims would be severed, with a determination remaining as to whether each would be severed individually, or if any would proceed collectively. For the reasons set forth in OOCL's Supplemental Brief in Further Support of their Motion to Sever, OOCL does not see any basis by which any of the claims should proceed collectively.

Furthermore, it is not practical to begin discovery at this juncture. Unless and until the cases are severed, nobody will have reasonable knowledge about the claims applicable to specific Respondents. The Complaint does contain some factual allegations specific to OOCL, but the bulk of the Complaint is an amorphous mass of vague and generalized allegations that may apply to some, but not all, of the Respondents.

IV. Any Prejudice or Delay to NBG is at its Own Hand.

NBG elected to bring this action against multiple individual respondents. At any point from December 31, 2024 through the present, NBG could have voluntarily dismissed its omnibus action against Respondents herein to commence actions against each respondent individually and sought discovery in the usual course. This is what was done, for example, in Docket No. 22-14, *MSRF v. HMM Company, Ltd. and Yang Ming Transport Corp.*, where the Complainant recognized the difficulty of multi-respondent litigation and accordingly withdrew its complaint, replacing it with individual complaints against individual respondents (Dockets Nos. 22-20 and 22-21). 2022 WL 3210448 (F.M.C.)(August 3, 2022)(FMC Notice of Dismissal). NBG's refusal to do so, even after the Presiding Officer said she was likely to sever, should not now permit it to proceed with any collective discovery.

V. OOCL Would be Prejudiced by the Commission Granting NBG's Motion.

For the reasons set forth in OOCL's briefing on the Motion to Sever and in its July 7 Supplemental Response, there are numerous reasons why it is not logical or efficient for this matter to proceed as constituted, even in a preliminary discovery context.

As noted in OOCL's Supplemental Brief, because the Ocean Alliance member carriers are expressly barred from sharing information about customers' service contract rates, terms, and other data, protective orders and other measures would have to be put in place to reduce the potential for Evergreen's confidential commercial information flowing to OOCL and vice versa in the course of discovery. Even assuming that such measures would stop, rather than merely reduce, such improper information flow, it will add a needless layer of difficulty for all the litigants.

In sum, it would be time-consuming, expensive, and raises issues related to disclosure of sensitive commercial information that Respondents should not be forced to share with their direct competitors.

VI. A Status Conference is Not Warranted.

OOCL expects a decision regarding Respondents' motions to sever is likely forthcoming. OOCL fails to see how a status conference requiring scheduling and participation of counsel for all Respondents is warranted given that the Presiding Officer has already indicated that she is inclined to sever the cases.

CONCLUSION

For the reasons set forth above, and in OOCL's briefing regarding its Motion to Sever or for a More Definite Statement, NBG is not entitled to begin discovery in this action as presently constituted, and its Motion must be denied.

Dated: August 22, 2025

Respectfully submitted,

/s/ Keith B. Letourneau

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was provided to all counsel of record in the above-captioned action by email on this 22nd Day of August, 2025.

/s/ Emma C. Jones

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